

26SMCV01259 26SMCV01259

County: los-angeles

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Department: 205

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Case Number: 26SMCV01259 Hearing Date: July 1, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

EMANOEL COUHEN,

Plaintiff,

v.

MERCEDES-BENZ USA, LLC, et al.,

Defendants.

Case No.:

26SMCV01259

Hearing Date: 07/01/2026

Trial Date:

None

[TENTATIVE] RULING RE:

MOTION TO COMPEL BINDING ARBITRATION

Background

This is a lemon law action filed by plaintiff, Emanuel Couhen (Plaintiff) against defendant, Mercedes Benz USA LLC (Defendant) and DOES 1 through 100.

On May 15, 2024 Plaintiff leased a 2024 Mercedes-Benz EQS450V (Vehicle). (Ameripour Decl., ¶ 4, Ex. 2.) On that day, Plaintiff signed a motor vehicle lease agreement (Lease Agreement), which included an agreement to arbitrate. (Ibid.) The Lease Agreement identifies Plaintiff as the Vehicle's lessee and WI Simonson as the lessor. (Ibid.)

Plaintiff pleaded that defects and non-conformities to warranty manifested in the Vehicle during the applicable warranty period. Plaintiff pleaded he delivered the Vehicle to Defendant for repairs, but Defendant was unable to conform the Vehicle to the applicable warranty after a reasonable number of repair attempts. (generally, Complaint.)

On March 3, 2026, Plaintiff filed his Complaint.

On April 15, 2026, Defendant asked Plaintiff to stipulate to arbitration, but Plaintiff did not agree. (Ameripour Decl., ¶ 3.)

On April 15, 2026, Defendant filed its motion to compel Plaintiff to arbitrate his dispute with Defendant and requested that the Court stay the proceedings in this case. Defendant asserts that Plaintiff leased the Vehicle subject to the terms of an arbitration provision contained in the Lease Agreement.

On June 17, 2026, Plaintiff filed an Opposition brief.

On June 24, 2026, Defendant filed a Reply brief.

Request for Judicial Notice

Defendant requests the Court take

judicial notice of Plaintiff's Complaint filed on March 3, 2026.

The request is granted. (Evid. Code

§ 452(d), (h); See *Kalnoki v. First American Trustee Servicing Solutions, LLC* (2017) 8 Cal.App.5th 23,37.) However, the court only takes judicial notice of the foregoing documents only as to "the existence, content and authenticity of public records and other specified documents"; it does not take judicial notice of the truth of the factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal. App. 5th 389, 400.)

Legal Standard

Parties may be compelled to arbitrate a dispute upon the court

finding that: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties' dispute. (Code Civ. Proc., § 1281.2; *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.)

Analysis

Defendant moves to compel arbitration.

The motion will be granted.

Defendant

asserts Plaintiff is bound to arbitrate his dispute with Defendant because there is an agreement to arbitrate contained in the Lease Agreement which designates Defendant as a third-party beneficiary.

The Lease

Agreement signed by the parties on May 15, 2024, contains an arbitration provision, which reads, in pertinent part, as follows:

Any claim or

dispute, whether in contract, tort or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue), between you and us or any of our employees, agents, successors, assigns, or the vehicle distributor, including Mercedes-Benz USA LLC (each a "Third-Party Beneficiary"), which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease (including any such

relationship with third parties who do not sign this contract) shall, at the election of either you, us, or a Third-Party Beneficiary, be resolved by a neutral, binding arbitration and not by a court action.

(Ameripour Decl., Ex. 2, p. 4.)

The Lease

Agreement's arbitration provision further provides:

This lease evidences a transaction involving interstate commerce. Any arbitration under this lease shall be governed by the Federal Arbitration Act (9 USC 1, et seq).

(Ameripour
Decl., Ex. 2, p. 4.)

The Lease Agreement expressly states that Defendant shall be allowed to enforce the arbitration provision as a third-party beneficiary and expressly designates Defendant as such.

A defendant may be able to enforce an arbitration agreement to which it is not a signatory if it qualifies as a third-party beneficiary. (See *Mance v. Mercedes-Benz USA* (N.D.Cal. 2012) 901 F.Supp.2d 1147, 1155.) The elements necessary to establish a third-party beneficiary relationship are (1) the third party would in fact benefit from the contract; (2) a motivating purpose of the contracting parties was to provide a benefit to the third party; and (3) permitting the third party to enforce the contract is consistent with the objectives of the contract and the reasonable expectations of the contracting parties. (*Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 830.) "Whether the third party is an intended beneficiary or merely an incidental beneficiary involves construction of the intention of the parties, gathered from reading the contract as a whole in light of the circumstances under which it was entered." (*Cione v. Foresters Equity Servs.* (1997) 58 Cal.App.4th 625, 636, quoting *Eastern Aviation Group, Inc. v. Airborne Express, Inc.* (1992) 6 Cal.App.4th 1448, 1452.)

Here, the terms of the Lease Agreement executed by Plaintiff and WI Simonson expressly designate Defendant, the Vehicle's manufacturer/distributor, as an intended third-party

beneficiary. Defendant stood to benefit from the Lease Agreement by way of its receipt of indirect profits.

Plaintiff argues that he filed the instant action against Defendant alone, asserting three causes of action for breach of implied warranty, breach of express warranty, and violation of the Song-Beverly Consumer Warranty Act. (Opp., p. 4.) Plaintiff contends that all three causes of action arise from Defendant's new-vehicle warranty and its statutory duties as the manufacturer, not from any term of the Lease Agreement. (Ibid.)

Plaintiff argues the instant motion should be denied based on the holdings in Ford Motor Warranty Cases (2025) 17 Cal.5th 1122 and Goonewardene v. ADT LLC (2019) 6 Cal.5th 1145 because Defendant was not a signatory to the Lease Agreement and is not a "third-party beneficiary". (Opp., p. 2.) However, Plaintiff's reliance on both Ford Motor Warranty Cases and Goonewardene is misplaced.

In Ford Motor Warranty Cases, the Supreme Court declined to permit a manufacturer to compel arbitration under principles of estoppel where the arbitration agreement contained no language authorizing enforcement by a third party in the defendant's position. (Ford Motor Warranty Cases, supra, 17 Cal.5th 1122 at 1138.) This case is distinguishable from Ford Motor Warranty Cases in that the Lease Agreement specifically extends arbitration rights Defendant. (Ameripour Decl., Ex. 2, p. 4.) Because Defendant is named as an intended third-party beneficiary in the Lease Agreement, the reasoning in Ford Motor Warranty Cases does not apply.

In Goonewardene, the court laid out three elements required for a finding third-party beneficiary status: (1) whether the third party would in fact benefit from the contract, but also (2) whether a motivating purpose of the contracting parties was to provide a benefit to the third party, and (3) whether permitting a third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectations of the contracting parties. (Goonewardene v. ADP, LLC, supra, 6 Cal.5th 817 at 830.) Here, all the elements are met. First, Defendant benefits from the Lease Agreement as the manufacturer. Second, there is a clear "intent to benefit the third party" as the provision

unambiguously includes Mercedes-Benz USA, LLC as a third-party beneficiary. (Lease, Exhibit 2 to Ameripour Decl., page 4.) (Goonewardene, supra, 6 Cal.5th 817 at 830.) And third, it is reasonable to infer that the Lease Agreement anticipated Defendant's possible enforcement of the Lease Agreement, otherwise, it would not have been expressly identified.

Therefore, Defendant may enforce the arbitration provision.

Conclusion

Defendant Mercedes-Benz USA, LLC's motion for an order compelling Plaintiff Emanoel Couhen to arbitrate his complaint against Defendant Mercedes-Benz USA, LLC is GRANTED.

This action is hereby STAYED pending a resolution of arbitration. See Code Civ. Proc., § 1281.4.

Defendant Mercedes-Benz USA, LLC is ORDERED to give notice.

Dated: July 1, 2026

Edward B. Moreton, Jr.

Judge of the Superior Court